

MEDIATION STATEMENT

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April 20, 2026

RE: Acme Healthcare Solutions, Inc. v. Dr. Sarah J. Whitfield
Cause No. D-2026-00187

MEDIATION STATEMENT OF DEFENDANT

Defendant Dr. Sarah J. Whitfield submits this mediation statement:

1. Defendant acknowledges signing the Employment Agreement but contends the Non-Compete Covenant is unenforceable.
2. Defendant's primary defenses are:
 - a. The 50-mile geographic restriction is overly broad;
 - b. Company breached the Agreement first by failing to pay \$37,000.00 bonus;
 - c. No legitimate business interest justifies the restriction.
3. Defendant is willing to settle for:
 - a. Mutual release of all claims;
 - b. Defendant agrees not to solicit Acme employees for 12 months;
 - c. Each party bears its own attorneys' fees.
4. Defendant will not agree to:
 - a. Reinstatement of the Non-Compete Covenant;
 - b. Payment of liquidated damages of \$50,000.00;
 - c. Payment of actual damages of \$340,000.00.

Respectfully submitted,
David K. Park, Esq.
Attorneys for Defendant